

## **EU Cosmetics Regulation — Regulation (EC) No 1223/2009 (2)**

### **Article 13**

**Title:** Cosmetic Product Notification

**Jurisdiction:** International

**Category:** International

**Source Citation:** Regulation (EC) No 1223/2009, Article 13, 2009

#### **Plain English Summary:**

Before placing a cosmetic product on the EU market, the Responsible Person must submit specified product information electronically to the European Commission. The notification includes product identification, Responsible Person details, country of origin for imports, nanomaterial information, certain CMR substances and other information needed for appropriate medical treatment.

#### **The Exact Legal Text:**

1. Prior to placing the cosmetic product on the market the responsible person shall submit, by electronic means, the following information to the Commission:
  - (a) the category of cosmetic product and its name or names, enabling its specific identification;
  - (b) the name and address of the responsible person where the product information file is made readily accessible;
  - (c) the country of origin in the case of import;
  - (d) the Member State in which the cosmetic product is to be placed on the market;
  - (e) the contact details of a physical person to contact in the case of necessity;
  - (f) the presence of substances in the form of nanomaterials and:
    - (i) their identification including the chemical name (IUPAC) and other descriptors as specified in point 2 of the Preamble to Annexes II to VI to this Regulation;
    - (ii) the reasonably foreseeable exposure conditions;
  - (g) the name and the Chemicals Abstracts Service (CAS) or EC number of substances classified as carcinogenic, mutagenic or toxic for reproduction (CMR), of category 1A or 1B, under Part 3 of Annex VI to Regulation (EC) No 1272/2008;
  - (h) the frame formulation allowing for prompt and appropriate medical treatment in the event of difficulties.

The first subparagraph shall also apply to cosmetic products notified under Directive 76/768/EEC.

2. When the cosmetic product is placed on the market, the responsible person shall notify to the Commission the original labelling, and, where reasonably legible, a photograph of the corresponding packaging.
3. As from 11 July 2013, a distributor who makes available in a Member State a cosmetic product already placed on the market in another Member State and translates, on his own initiative, any element of the labelling of that product in order to comply with national law, shall submit, by electronic means, the following information to the Commission:

(a) the category of cosmetic product, its name in the Member State of dispatch and its name in the Member State in which it is made available, enabling its specific identification;

(b) the Member State in which the cosmetic product is made available;

(c) his name and address;

(d) the name and address of the responsible person where the product information file is made readily accessible.

4. Where a cosmetic product has been placed on the market before 11 July 2013 but is no longer placed on the market as from that date, and a distributor introduces that product in a Member State after that date, that distributor shall communicate the following to the responsible person:

(a) the category of cosmetic product, its name in the Member State of dispatch and its name in the Member State in which it is made available, enabling its specific identification;

(b) the Member State in which the cosmetic product is made available;

(c) his name and address.

On the basis of that communication, the responsible person shall submit to the Commission, by electronic means, the information referred to in paragraph 1 of this Article, where notifications according to Article 7(3) and Article 7a (4) of Directive 76/768/EEC have not been carried out in the Member State in which the cosmetic product is made available.

5. The Commission shall, without delay, make the information referred to in points (a) to (g) of paragraph 1, and in paragraphs 2 and 3 available electronically to all competent authorities.

That information may be used by competent authorities only for the purposes of market surveillance, market analysis, evaluation and consumer information in the context of Articles 25, 26 and 27.

6. The Commission shall, without delay, make the information referred to in paragraphs 1, 2 and 3 available electronically to poison centres or similar bodies, where such centres or bodies have been established by Member States.

That information may be used by those bodies only for the purposes of medical treatment.

7. Where any of the information set out in paragraphs 1, 3 and 4 changes, the responsible person or the distributor shall provide an update without delay.

8. The Commission may, taking into account technical and scientific progress and specific needs related to market surveillance, amend paragraphs 1 to 7 by adding requirements.

Those measures, designed to amend non-essential elements of this Regulation, shall be adopted in accordance with the regulatory procedure with scrutiny referred to in Article 32(3).

**Keywords/Triggers:**

cosmetic product notification, EU cosmetic notification, cosmetic product registration, CPNP notification, cosmetic labelling notification, nanomaterial notification, CMR substances, cosmetic market notification

## **Article 14**

**Title:** Restrictions on Cosmetic Substances

**Jurisdiction:** International

**Category:** Standards

**Source Citation:** Regulation (EC) No 1223/2009, Article 14, 2009

**Plain English Summary:**

Cosmetic products must not contain substances prohibited under Annex II or restricted substances unless the applicable Annex III conditions are met. The Regulation also controls permitted colourants, preservatives and UV filters through Annexes IV, V and VI.

**The Exact Legal Text:**

1. Without prejudice to Article 3, cosmetic products shall not contain any of the following:

(a) prohibited substances

prohibited substances listed in Annex II;

(b) restricted substances

restricted substances which are not used in accordance with the restrictions laid down in Annex III;

(c) colorants

(i) colorants other than those listed in Annex IV and colorants which are listed there but not used in accordance with the conditions laid down in that Annex, except for hair colouring products referred to in paragraph 2;

(ii) without prejudice to points (b), (d)(i) and (e)(i), substances which are listed in Annex IV but which are not intended to be used as colorants, and which are not used in accordance with the conditions laid down in that Annex;

(d) preservatives

(i) preservatives other than those listed in Annex V and preservatives which are listed there but not used in accordance with the conditions laid down in that Annex;

(ii) without prejudice to points (b), (c)(i) and (e)(i), substances listed in Annex V but which are not intended to be used as preservatives, and which are not used in accordance with the conditions laid down in that Annex;

(e) UV-filters

(i) UV-filters other than those listed in Annex VI and UV-filters which are listed there but not used in accordance with the conditions laid down in that Annex;

(ii) without prejudice to points (b), (c)(i) and (d)(i), substances listed in Annex VI but which are not intended to be used as UV-filters and which are not used in accordance with the conditions laid down in that Annex.

2. Subject to a decision of the Commission to extend the scope of Annex IV to hair colouring products, such products shall not contain colorants intended to colour the hair, other than those listed in Annex IV and colorants intended to colour the hair which are listed there but not used in accordance with the conditions laid down in that Annex.

The decision of the Commission referred to in the first subparagraph, designed to amend non-essential elements of this Regulation, shall be adopted in accordance with the regulatory procedure with scrutiny referred to in Article 32(3).

**Keywords/Triggers:**

cosmetic prohibited substances, restricted substances cosmetics, cosmetic colourants, cosmetic preservatives, UV filters, Annex II cosmetics, Annex III restrictions, Annex IV V VI cosmetics

## **Article 15**

**Title:** CMR Substances in Cosmetic Products

**Jurisdiction:** International

**Category:** Standards

**Source Citation:** Regulation (EC) No 1223/2009, Article 15, 2009

**Plain English Summary:**

The Regulation generally prohibits the use of carcinogenic, mutagenic and toxic-for-reproduction (CMR) substances in cosmetic products, with limited exceptions subject to specified safety and regulatory conditions. Certain CMR substances may only be used where the required safety evaluation and other conditions are satisfied.

**The Exact Legal Text:**

1. The use in cosmetic products of substances classified as CMR substances, of category 2, under Part 3 of Annex VI to Regulation (EC) No 1272/2008 shall be prohibited. However, a substance classified in category 2 may be used in cosmetic products where the substance has been evaluated by the SCCS and found safe for use in cosmetic products. To these ends the Commission shall adopt the necessary measures in accordance with the regulatory procedure with scrutiny referred to in Article 32(3) of this Regulation.
2. The use in cosmetic products of substances classified as CMR substances, of category 1A or 1B under Part 3 of Annex VI to Regulation (EC) No 1272/2008 shall be prohibited.

However, such substances may be used in cosmetic products by way of exception where, subsequent to their classification as CMR substances of category 1A or 1B under Part 3 of Annex VI to Regulation (EC) No 1272/2008, all of the following conditions are fulfilled:

(a) they comply with the food safety requirements as defined in Regulation (EC) No 178/2002 of the European Parliament and of the Council of 28 January 2002 laying down the general principles and requirements of food law, establishing the European Food Safety Authority and laying down procedures in matters of food safety;

(b) there are no suitable alternative substances available, as documented in an analysis of alternatives;

(c) the application is made for a particular use of the product category with a known exposure; and

(d) they have been evaluated and found safe by the SCCS for use in cosmetic products, in particular in view of exposure to these products and taking into consideration the overall exposure from other sources, taking particular account of vulnerable population groups.

Specific labelling in order to avoid misuse of the cosmetic product shall be provided in accordance with Article 3 of this Regulation, taking into account possible risks linked to the presence of hazardous substances and the routes of exposure.

In order to implement this paragraph, the Commission shall amend the Annexes to this Regulation in accordance with the regulatory procedure with scrutiny referred to in Article 32(3) of this Regulation within 15 months of the inclusion of the substances concerned in Part 3 of Annex VI to Regulation (EC) No 1272/2008.

On imperative grounds of urgency, the Commission may use the urgency procedure referred to in Article 32(4) of this Regulation.

The Commission shall mandate the SCCS to re-evaluate those substances as soon as safety concerns arise, and at the latest five years after their inclusion in Annexes III to VI to this Regulation, and at least every subsequent five years.

3. By 11 January 2012, the Commission shall ensure that appropriate guidance is developed with the aim of enabling a harmonised approach to the development and use of overall exposure estimates in assessing the safe use of CMR substances. This guidance shall be developed in consultation with the SCCS, the ECHA, the EFSA and other relevant stakeholders, drawing, as appropriate, on relevant best practice.
4. When Community or internationally agreed criteria for identifying substances with endocrine-disrupting properties are available, or at the latest on 11 January 2015, the Commission shall review this Regulation with regard to substances with endocrine-disrupting properties.

**Keywords/Triggers:**

CMR substances cosmetics, carcinogenic substances, mutagenic substances, reproductive toxicity cosmetics, SCCS safety assessment, cosmetic ingredient restrictions, hazardous cosmetic substances, endocrine disruptors

**Article 16**

**Title:** Nanomaterials in Cosmetic Products

**Jurisdiction:** International

**Category:** Standards

**Source Citation:** Regulation (EC) No 1223/2009, Article 16, 2009

**Plain English Summary:**

Cosmetic products containing nanomaterials are subject to additional safety and notification requirements. Responsible Persons must provide specified information about the nanomaterial and its exposure conditions, and the Commission may require further safety assessment or amend restrictions where there is a potential risk to human health.

**The Exact Legal Text:**

1. For every cosmetic product that contains nanomaterials, a high level of protection of human health shall be ensured.
2. The provisions of this Article do not apply to nanomaterials used as colorants, UV-filters or preservatives regulated under Article 14, unless expressly specified.
3. In addition to the notification under Article 13, cosmetic products containing nanomaterials shall be notified to the Commission by the responsible person by electronic means six months prior to being placed on the market, except where they have already been placed on the market by the same responsible person before 11 January 2013.

In the latter case, cosmetic products containing nanomaterials placed on the market shall be notified to the Commission by the responsible person between 11 January 2013 and 11 July 2013 by electronic means, in addition to the notification in Article 13.

The first and the second subparagraphs shall not apply to cosmetic products containing nanomaterials that are in conformity with the requirements set out in Annex III.

The information notified to the Commission shall contain at least the following:

- (a) the identification of the nanomaterial including its chemical name (IUPAC) and other descriptors as specified in point 2 of the Preamble to Annexes II to VI;
- (b) the specification of the nanomaterial including size of particles, physical and chemical properties;
- (c) an estimate of the quantity of nanomaterial contained in cosmetic products intended to be placed on the market per year;
- (d) the toxicological profile of the nanomaterial;
- (e) the safety data of the nanomaterial relating to the category of cosmetic product, as used in such products;
- (f) the reasonably foreseeable exposure conditions.

The responsible person may designate another legal or natural person by written mandate for the notification of nanomaterials and shall inform the Commission thereof.

The Commission shall provide a reference number for the submission of the toxicological profile, which may substitute the information to be notified under point (d).

4. In the event that the Commission has concerns regarding the safety of a nanomaterial, the Commission shall, without delay, request the SCCS to give its opinion on the safety of such nanomaterial for use in the relevant categories of cosmetic products and on the reasonably foreseeable exposure conditions. The Commission shall make this information public. The SCCS shall deliver its opinion within six months of the Commission's request. Where the SCCS finds that any necessary data is lacking, the Commission shall request the responsible person to provide such data within an explicitly stated reasonable time, which shall not be extended. The SCCS shall deliver its final opinion within six months of submission of additional data. The opinion of the SCCS shall be made publicly available.
5. The Commission may, at any time, invoke the procedure in paragraph 4 where it has any safety concerns, for example due to new information supplied by a third party.
6. Taking into account the opinion of the SCCS, and where there is a potential risk to human health, including when there is insufficient data, the Commission may amend Annexes II and III.
7. The Commission may, taking into account technical and scientific progress, amend paragraph 3 by adding requirements.
8. The measures, referred to in paragraphs 6 and 7, designed to amend non-essential elements of this Regulation, shall be adopted in accordance with the regulatory procedure with scrutiny referred to in Article 32(3).
9. On imperative grounds of urgency the Commission may use the procedure referred to in Article 32(4).
10. The following information shall be made available by the Commission:

(a) By 11 January 2014, the Commission shall make available a catalogue of all nanomaterials used in cosmetic products placed on the market, including those used as colorants, UV-filters and preservatives in a separate section, indicating the categories of cosmetic products and the reasonably foreseeable exposure conditions. This catalogue shall be regularly updated thereafter and be made publicly available.

(b) The Commission shall submit to the European Parliament and the Council an annual status report, which will give information on developments in the use of nanomaterials in cosmetic products within the Community, including those used as colorants, UV-filters and preservatives in a separate section. The first report shall be presented by 11 July 2014. The report update shall summarise, in particular, the new nanomaterials in new categories of cosmetic products, the number of notifications, the progress made in developing nano-specific assessment methods and safety assessment guides, and information on international cooperation programmes.

11. The Commission shall regularly review the provisions of this Regulation concerning nanomaterials in the light of scientific progress and shall, where necessary, propose suitable amendments to those provisions.

The first review shall be undertaken by 11 July 2018.

**Keywords/Triggers:**

cosmetic nanomaterials, nano cosmetics, nanomaterial notification, cosmetic nano safety, SCCS nanomaterials, toxicological profile, nano exposure assessment, EU nano cosmetics